



Commonwealth of Virginia

VIRGINIA DEPARTMENT OF ENVIRONMENTAL QUALITY

www.deq.virginia.gov

Stefanie K. Taillon
Secretary of Natural and Historic Resources

Michael S. Rolband, PE, PWD, PWS Emeritus
Director

January 12, 2026

Ms. Lori Stocker
Senior HSE Manager, CBRE
Bank of America
8011 Villa Park Drive
Richmond, Virginia 23228

Location: Henrico County
Registration No.: 52221

Dear Ms. Stocker:

Attached is a significant amendment to your new source review permit approval dated January 12, 2026 to construct and operate a banking and critical data center in accordance with the provisions of the Virginia Regulations for the Control and Abatement of Air Pollution. Permit changes are reflected in Conditions 3, 4, 6, 7, 11, 19, and 20. This amended permit document supersedes your permit document dated June 3, 2024.

The Department of Environmental Quality (DEQ) deemed the application complete on October 1, 2025 and has determined that the application meets the requirements of 9VAC5-80-1290 A for a significant amendment to a new source review permit.

This permit document contains legally enforceable conditions. Failure to comply may result in a Notice of Violation and/or civil charges. Please read all permit conditions carefully.

This permit approval to construct and operate shall not relieve Bank of America of the responsibility to comply with all other local, state, and federal permit regulations.

The diesel generators in Building C, Engines 1, 2, 3, 4, 5, 6, 7, 8, 9, and 10 may be subject to 40 CFR 63, Maximum Achievable Control Technology (MACT) Subpart ZZZZ. Additionally, Boiler B-06 may be subject to MACT Subpart JJJJJ. Virginia has not accepted delegation of these rules. In summary, the units may be required to comply with certain federal emission standards and operating limitations. DEQ advises you to review the referenced MACT to ensure compliance with applicable emission and operational limitations. As the owner/operator, you may be also responsible for monitoring, testing, notification, reporting, and recordkeeping requirements of the MACT. Notifications shall only be sent to EPA, Region III.

The diesel generators in Building E, Engines 1, 2, 3, 4, 5 and 6 are subject to 40 CFR 60 New Source Performance Standards (NSPS) Subpart IIII, and 40 CFR 63 (MACT), Subpart ZZZZ. Virginia has not taken delegation of these rules. In summary, the units are required to comply with certain federal emission standards and operating limitations. DEQ advises you to review the referenced NSPS and MACT to ensure compliance with applicable emission and operational limitations. As the owner/operator, you are also responsible for monitoring, testing, notification, reporting, and recordkeeping requirements of the NSPS and the MACT. Notifications shall only be sent to EPA, Region III.

To review any federal rules referenced in the above paragraph or in the attached permit, the US Government Publishing Office maintains the text of these rules at www.ecfr.gov, Title 40, Part 60 and/or 63.

The Regulations as contained in Title 9 of the Virginia Administrative Code 5-170-200 provide that you may request a formal hearing from this case decision by filing a petition with the DEQ within 30 days after this case decision notice was mailed or delivered to you. Please consult the relevant regulations for additional requirements for such requests.

As provided by Rule 2A:2 of the Supreme Court of Virginia, you have 30 days from the date you actually received this permit or the date on which it was mailed to you, whichever occurred first, within which to initiate an appeal of this decision by filing a Notice of Appeal with:

Director
Department of Environmental Quality
P.O. Box 1105
Richmond, VA 23218

If this permit was delivered to you by mail, three days are added to the thirty-day period in which to file an appeal. Please refer to Part Two A of the Rules of the Supreme Court of Virginia for information on the required content of the Notice of Appeal and for additional requirements governing appeals from decisions of administrative agencies.

If you have any questions concerning this permit, please contact the regional office at 804-527-5020.

Sincerely,

James E. Kyle, P.E., Air Permit Manager
Virginia Department of Environmental Quality
(804) 489-6241
James.Kyle@deq.virginia.gov
Piedmont Regional Office
4949-A Cox Road, Glen Allen, VA 23060

Attachments: Permit

cc: Manager/Inspector, Air Compliance



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Stefanie K. Taillon
Secretary of Natural and Historic Resources

Michael S. Rolband, PE, PWD, PWS Emeritus
Director

STATIONARY SOURCE PERMIT TO MODIFY AND OPERATE

This permit document supersedes your permit document dated June 3, 2024.

In compliance with the Federal Clean Air Act and the Commonwealth of Virginia Regulations for the Control and Abatement of Air Pollution,

Bank of America
8011 Villa Park Drive
Richmond, Virginia 23228
Registration No.: 52221

is authorized to modify and operate

a banking and critical data center

located at

8011 Villa Park Drive
Richmond, Virginia 23228

in accordance with the Conditions of this permit.

Approved on January 12, 2026.

James E. Kyle, P.E.
Air Permit Manager

Permit consists of 13 pages.
Permit Conditions 1 to 28.

INTRODUCTION

This permit approval is based on and combines permit terms and conditions in accordance with 9VAC5-80-1255 from the following permit approvals and the respective permit applications:

- 2020 permit and applications
- 2024 permit and applications
- 2025 application

Any changes in the permit application specifications or any existing facilities which alter the impact of the facility on air quality may require a permit. Failure to obtain such a permit prior to construction may result in enforcement action. In addition, this facility may be subject to additional applicable requirements not listed in this permit document.

Words or terms used in this permit document shall have meanings as provided in 9 VAC 5-10-10 of the State Air Pollution Control Board Regulations for the Control and Abatement of Air Pollution. The regulatory reference or authority for each condition is listed in parentheses () after each condition. The enabling permit program, or permit programs is provided below each permit condition in the regulatory authority parenthetical as follows: 9VAC5-80-850 for Article 5, 9VAC5-80-1180 for Article 6, 9VAC5-80-1985 for Article 8, and 9VAC5-80-2050 for Article 9. The most recent effective date for a term or condition is listed in brackets []. When identical conditions for one or more emission units are combined, the effective date listed in this permit does not alter the prior effective date(s) for any such conditions as issued in a previous permit action. In accordance with 9VAC5-80-1120F, any condition not marked as state-only enforceable (SOE) is state and federally enforceable.

Annual requirements to fulfill legal obligations to maintain current stationary source emissions data will necessitate a prompt response by the permittee to requests by the DEQ for information to include, as appropriate: process and production data; changes in control equipment; and operating schedules. Such requests for information from the DEQ will either be in writing or by personal contact.

The availability of information submitted to the DEQ or the Board will be governed by applicable provisions of the Freedom of Information Act, §§ 2.2-3700 through 2.2-3714 of the Code of Virginia, § 10.1-1314 (addressing information provided to the DEQ) of the Code of Virginia, and 9 VAC 5-170-60 of the State Air Pollution Control Board Regulations. Information provided to federal officials is subject to appropriate federal law and regulations governing confidentiality of such information.

Equipment List - Equipment at this facility covered by this permit consists of:

Equipment included in the project:

Reference No.	Building	Equipment Description	Rated Capacity	Referenced Federal Requirements
B-05	C2-Basement	Cleaver Brooks Boiler, CFC-E-700-6000-125HW	6 MMBtu/hr	None
B-06	C2-Basement	Cleaver Brooks Boiler, SFC-200-6000-160HW	6 MMBtu/hr	None

Equipment Permitted prior to the date of this permit.

Reference No.	Building	Equipment Description	Rated Capacity	Referenced Federal Requirements
Building C, Engine 1	Gen House 1	Caterpillar 3516 diesel generator (1987)	1,600 kW 2,307 bhp	None
Building C, Engine 2	Gen House 1	Caterpillar 3516 diesel generator (1987)	1,600 kW 2,307 bhp	None
Building C, Engine 3	Gen House 1	Caterpillar 3516 diesel generator (1987)	1,600 kW 2,307 bhp	None
Building C, Engine 4	Gen House 1	Caterpillar 3516 diesel generator (1988)	1,750 kW 2,518 bhp	None
Building C, Engine 5	Gen House 2	Caterpillar 3512 diesel generator (1998)	1,375 kW 1,977 bhp	None
Building C, Engine 6	Gen House 2	Caterpillar 3512 diesel generator (1998)	1,375 kW 1,977 bhp	None
Building C, Engine 7	Gen House 3	Caterpillar 3516 diesel generator (2005)	2,000 kW 2885 bhp	None
Building C, Engine 8	Gen House 3	Caterpillar 3516 diesel generator (2005)	2,000 kW 2,885 bhp	None
Building C, Engine 9	Gen House 3	Caterpillar 3516 diesel generator (2005)	2,000 kW 2885 bhp	None
Building C, Engine 10	Gen House 3	Caterpillar 3516 diesel generator (2005)	2,000 kW 2,885 bhp	None
Building E, Engine 1	Bldg. E, Gen-1	Caterpillar 3516 diesel generator (2006)	2,250 kW 3,286 bhp	None
Building E, Engine 2	Bldg. E, Gen-2	Caterpillar 3516 diesel generator (2006)	2,250 kW 3,286 bhp	None
Building E, Engine 3	Bldg. E, Gen-3	Caterpillar 3516 diesel generator (2006)	2,250 kW 3,286 bhp	None
Building E, Engine 4	Bldg. E, DG 4	Caterpillar C175-16 diesel Generator (2009)	3,000 kW 4423 bhp	None
Building E, Engine 5	Bldg. E, DG 5	Caterpillar C175-16 diesel Generator (2009)	3,000 kW 4,423 bhp	None
Building E, Engine 6	Bldg. E, DG 6	Caterpillar C175-16 diesel Generator (2010)	3,000 kW 4,423 bhp	None
B-05	C2-Basement	Cleaver Brooks Boiler, CFC-E-700-6000-125HW	6 MMBtu/hr	None
B-06	C2-Basement	Cleaver Brooks Boiler, SFC-200-6000-160HW	6 MMBtu/hr	None

Specifications included in the above table are for informational purposes only and do not form enforceable terms or conditions of the permit.

PROCESS REQUIREMENTS

1. Emission Controls - Visible emissions, volatile organic compound (VOC) emissions and nitrogen oxide (NOx) emissions shall be controlled by the use of good operating practices and performing appropriate maintenance in accordance with the manufacturer

recommendations. In addition, the permittee may only change those settings that are permitted by the manufacturer and do not increase air emissions.
(9 VAC 5-80-1180 and 9 VAC 5-50-260) [June 3, 2024]

OPERATING LIMITATIONS

2. Operating Hours - The generators shall not operate more than the following hours per year.

Reference Number	Hours of Operation/year
Combined total for Building C, Engines 1-4	C 1-3: 650 C 4: 260
Combined total for Building C, Engines 5-6	C 5-6: 260
Combined total for Building C, Engines 7-10	C 7-9: 650 C 10: 350
Combined total for Building E, Engines 1-3	E 1-3: 650
Combined total for Building E, Engines 4-6	E 4-6: 650

The hours of operation for each generator shall be calculated monthly as the sum of each consecutive 12-month period. Compliance for the consecutive 12-month period shall be demonstrated monthly by adding the total for the most recently completed calendar month to the individual monthly totals for the preceding 11 months.
(9 VAC 5-80-1180 and 9 VAC 5-50-260) [June 3, 2024]

3. Fuel - The approved fuel for the boiler (Ref. No. B-05) is natural gas. A change in the fuel may require a permit to modify and operate.
(9 VAC 5-80-1180) [January 12, 2026]
4. Fuel - The approved fuels for the boiler (Ref. No. B-06) are natural gas and distillate oil and/or S15 diesel fuel oil. A change in the fuel may require a permit to modify and operate.
(9 VAC 5-80-1180) [January 12, 2026]
5. Fuel - The approved fuel for the generators is distillate oil and/or diesel fuel. A change in the fuel may require a permit to modify and operate.
(9 VAC 5-80-1180) [December 2, 2020]
6. Fuel Throughput - The boiler (Ref. No. B-05) shall consume no more than 37.0 million cubic feet of natural gas per year, calculated monthly as the sum of each consecutive 12-month period. Compliance for the consecutive 12-month period shall be demonstrated monthly by adding the total for the most recently completed calendar month to the individual monthly totals for the preceding 11 months.
(9 VAC 5-80-1180) [January 12, 2026]

7. Fuel Throughput - The boiler (Ref. No. B-06) shall consume no more than 37.0 million cubic feet of natural gas and 11,263 gallons of distillate oil and/or diesel fuel oil per year per year, calculated monthly as the sum of each consecutive 12-month period. Compliance for the consecutive 12-month period shall be demonstrated monthly by adding the total for the most recently completed calendar month to the individual monthly totals for the preceding 11 months.
9 VAC 5-80-1180) [January 12, 2026]

8. Fuel - The distillate oil, diesel fuel, and natural gas shall meet the specifications below:

DISTILLATE OIL which meets the ASTM D396 specification for numbers 1 or 2 fuel oil:
Maximum sulfur content per shipment: 0.0015% by weight
(All boilers and Building C/E, All generators)

DIESEL FUEL which meets the ASTM specification (ASTM D975 or a DEQ-approved equivalent method) for S15 diesel fuel oil:
Maximum sulfur content per shipment: 0.0015% by weight
(Boiler B-06 and Building C/E, All generators)

NATURAL GAS:
Minimum heat content: 1,000 Btu/cf HHV
(as determined by ASTM D1826, D2382, D4809 or a DEQ-approved equivalent method)

(9 VAC 5-80-1180 and 9 VAC 5-50-260) [December 2, 2020]

9. Fuel Certification - The permittee shall obtain a certification from the fuel supplier with each shipment of distillate oil and/or diesel fuel. Each fuel supplier certification shall include the following:

- a. The name of the fuel supplier;
- b. The date on which the distillate oil and/or diesel fuel was received;
- c. The quantity of distillate oil and/or diesel fuel delivered in the shipment;

A statement that the distillate oil complies with the American Society for Testing and Materials specifications (ASTM D396) for numbers 1 or 2 fuel oil; and/or diesel fuel complies with the American Society for Testing and Materials specifications (ASTM D975) specification for S15 diesel fuel oil; and

- d. The sulfur content of the distillate oil and/or diesel fuel.

Fuel sampling and analysis, independent of that used for certification, as may be periodically required or conducted by DEQ may be used to determine compliance with the

fuel specifications stipulated in Condition 8. Exceedance of these specifications may be considered credible evidence of the exceedance of emission limits.
(9 VAC 5-80-1180) [December 2, 2020]

EMISSION LIMITS

10. Emissions Testing - The facility shall be constructed/modified/installed so as to allow for emissions testing upon reasonable notice at any time, using appropriate methods. Sampling ports shall be provided when requested at the appropriate locations and safe sampling platforms and access shall be provided.

(9 VAC 5-50-30 F and 9 VAC 5-80-1180) [December 2, 2020]

11. Process Emission Limits - Emissions from the operation of the combined boilers (Ref. Nos. B-05 and B-06) shall not exceed the limits specified below:

Nitrogen Oxides (as NO ₂)	1.1 lb/hr	1.7 tons/yr
Carbon Monoxide	1.22 lb/hr	3.2 tons/yr

These emissions are derived from the estimated overall emission contribution from operating limits. Exceedance of the operating limits may be considered credible evidence of the exceedance of emission limits. Compliance with these emission limits may be determined as stated in Conditions 3, 4, 6, 7, and 8.

(9 VAC 5-80-1180) [January 12, 2026]

12. Process Emission Limits - Emissions from the operation of the generators (Ref. Nos. Building C, Engines 1-3) shall not exceed the limits specified below:

	Each Unit	Combined Total
Particulate Matter	1.6 lb/hr	0.5 tons/yr
PM10	1.6 lb/hr	0.6 tons/yr
Nitrogen Oxides (as NO ₂)	55.4 lb/hr	18.0 tons/yr
Carbon Monoxide	12.7 lb/hr	4.1 tons/yr
Volatile Organic Compounds	1.5 lb/hr	0.5 tons/yr

These emissions are derived from the estimated overall emission contribution from operating limits. Exceedance of the operating limits may be considered credible evidence of the exceedance of emission limits. Compliance with these emission limits may be determined as stated in Conditions 2, 5, and 8.

(9 VAC 5-80-1180) [June 3, 2024]

13. Process Emission Limits - Emissions from the operation of the generators (Ref. Nos. Building C, Engine 4) shall not exceed the limits specified below:

	Each Unit	Combined Total
Particulate Matter	1.8 lb/hr	0.2 tons/yr
PM10	1.8 lb/hr	0.2 tons/yr
Nitrogen Oxides (as NO ₂)	60.4 lb/hr	7.9 tons/yr
Carbon Monoxide	13.9 lb/hr	1.8 tons/yr
Volatile Organic Compounds	1.6 lb/hr	0.2 tons/yr

These emissions are derived from the estimated overall emission contribution from operating limits. Exceedance of the operating limits may be considered credible evidence of the exceedance of emission limits. Compliance with these emission limits may be determined as stated in Conditions 2, 5, and 8.
 (9 VAC 5-80-1180) [December 2, 2020]

14. Process Emission Limits - Emissions from the operation of the generators (Ref. Nos. Building C, Engines 5-6) shall not exceed the limits specified below:

	Each Unit	Combined Total
Particulate Matter	1.4 lb/hr	0.2 tons/yr
PM10	1.4 lb/hr	0.2 tons/yr
Nitrogen Oxides (as NO ₂)	47.5 lb/hr	6.2 tons/yr
Carbon Monoxide	10.9 lb/hr	1.4 tons/yr
Volatile Organic Compounds	1.3 lb/hr	0.2 tons/yr

These emissions are derived from the estimated overall emission contribution from operating limits. Exceedance of the operating limits may be considered credible evidence of the exceedance of emission limits. Compliance with these emission limits may be determined as stated in Conditions 2, 5, and 8.
 (9 VAC 5-80-1180) [December 2, 2020]

15. Process Emission Limits - Emissions from the operation of the generators (Ref. Nos. Building C, Engines 7-9) shall not exceed the limits specified below:

	Each Unit	Combined Total
Particulate Matter	1.1 lb/hr	0.4 tons/yr
PM10	1.1 lb/hr	0.4 tons/yr
Nitrogen Oxides (as NO ₂)	35.8 lb/hr	11.6 tons/yr
Carbon Monoxide	5.3 lb/hr	1.7 tons/yr
Volatile Organic Compounds	2.2 lb/hr	0.7 tons/yr

These emissions are derived from the estimated overall emission contribution from operating limits. Exceedance of the operating limits may be considered credible evidence of the exceedance of emission limits. Compliance with these emission limits may be determined as stated in Conditions 2, 5, and 8.
 (9 VAC 5-80-1180) [June 3, 2024]

16. Process Emission Limits - Emissions from the operation of the generators (Ref. Nos. Building C, Engine 10) shall not exceed the limits specified below:

	Each Unit	Combined Total
Particulate Matter	0.8 lb/hr	0.1 tons/yr
PM10	0.8 lb/hr	0.1 tons/yr
Nitrogen Oxides (as NO ₂)	63.3 lb/hr	11.1 tons/yr
Carbon Monoxide	5.0 lb/hr	0.9 tons/yr
Volatile Organic Compounds	2.4 lb/hr	0.4 tons/yr

These emissions are derived from the estimated overall emission contribution from operating limits. Exceedance of the operating limits may be considered credible evidence of the exceedance of emission limits. Compliance with these emission limits may be determined as stated in Conditions 2, 5, and 8.
 (9 VAC 5-80-1180) [June 3, 2024]

17. Process Emission Limits - Emissions from the operation of the generators (Ref. Nos. Building E, Engines 1-3) shall not exceed the limits specified below:

	Each Unit	Combined Total
Particulate Matter	0.5 lb/hr	0.2 tons/yr
PM10	0.5 lb/hr	0.2 tons/yr
Nitrogen Oxides (as NO ₂)	65.9 lb/hr	21.4 tons/yr
Carbon Monoxide	9.3 lb/hr	3.0 tons/yr
Volatile Organic Compounds	1.0 lb/hr	0.3 tons/yr

These emissions are derived from the estimated overall emission contribution from operating limits. Exceedance of the operating limits may be considered credible evidence of the exceedance of emission limits. Compliance with these emission limits may be determined as stated in Conditions 2, 5, and 8.
 (9 VAC 5-80-1180 and 9 VAC 5-50-260) [June 3, 2024]

18. Process Emission Limits - Emissions from the operation of the generators (Ref. Nos. Building E, Engines 4-6) shall not exceed the limits specified below:

	Each Unit	Combined Total
Particulate Matter	0.6 lb/hr	0.2 tons/yr
PM10	0.6 lb/hr	0.2 tons/yr
Nitrogen Oxides (as NO ₂)	60.1 lb/hr	19.5 tons/yr
Carbon Monoxide	13.0 lb/hr	4.2 tons/yr
Volatile Organic Compounds	2.6 lb/hr	0.8 tons/yr

These emissions are derived from the estimated overall emission contribution from operating limits. Exceedance of the operating limits may be considered credible evidence of the exceedance of emission limits. Compliance with these emission limits may be determined as stated in Conditions 2, 5, and 8.
 (9 VAC 5-80-1180 and 9 VAC 5-50-260) [June 3, 2024]

19. Visible Emission Limit - Visible emissions from the boilers (Ref. Nos. B-05 and B-06) and generators shall each not exceed 10 percent opacity except during one six-minute period in any one hour in which visible emissions shall not exceed 20 percent opacity as determined by the EPA Method 9 (reference 40 CFR 60, Appendix A).
 (9 VAC 5-80-1180, 9 VAC 5-50-20E and 9 VAC 5-50-260) [January 12, 2026]

RECORDS

20. On Site Records - The permittee shall maintain records of emission data and operating parameters as necessary to demonstrate compliance with this permit. The content and format of such records shall be arranged with the Piedmont Regional Office. These records shall include, but are not limited to:
- a. Annual hours of operation for each generator, calculated monthly as the sum of each consecutive 12-month period. Compliance for the consecutive 12-month period shall be demonstrated monthly by adding the total for the most recently completed calendar month to the individual monthly totals for the preceding 11 months.
 - b. Annual consumption of natural gas and distillate oil for each boiler (Ref. No. B-05 and B-06), calculated monthly as the sum of each consecutive 12-month period. Compliance for the consecutive 12-month period shall be demonstrated monthly by adding the total for the most recently completed calendar month to the individual monthly totals for the preceding 11 months.
 - c. All fuel supplier certifications.
 - d. Engine information including make, model, serial number, model year, maximum engine power (bhp), and engine displacement for each engine-generator set.
 - e. The manufacturer's written operating instructions or procedures developed by the owner/operator that are approved by the engine manufacturer for each engine-generator set.
 - f. Records of the reasons for operation for each engine-generator set including, but not limited to, the Date, cause of operation, cause of the emergency, the ISO-declared emergency notification and the hours of operation.
 - g. Scheduled and unscheduled maintenance and operator training.
 - h. Results of all stack tests, visible emission evaluations and performance evaluations.
 - i. Other records as required.

These records shall be available for inspection by the DEQ and shall be current for the most recent five years.

(9 VAC 5-80-1180 and 9 VAC 5-50-50) [January 12, 2026]

GENERAL CONDITIONS

21. Permit Suspension/Revocation - This permit may be suspended or revoked if the permittee:

- a. Knowingly makes material misstatements in the permit application or any amendments to it;
- b. Fails to comply with the conditions of this permit;
- c. Fails to comply with any emission standards applicable to a permitted emissions unit;
- d. Causes emissions from the stationary source which result in violations of , or interfere with the attainment and maintenance of, any ambient air quality standard; or
- e. Fails to operate in conformance with any applicable control strategy, including any emission standards or emission limitations, in the State Implementation Plan in effect at the time an application for this permit is submitted.

(9 VAC 5-80-1210 G) [December 2, 2020]

22. Right of Entry - The permittee shall allow authorized local, state, and federal representatives, upon the presentation of credentials:

- a. To enter upon the permittee's premises on which the facility is located or in which any records are required to be kept under the terms and conditions of this permit;
- b. To have access to and copy at reasonable times any records required to be kept under the terms and conditions of this permit or the State Air Pollution Control Board Regulations;
- c. To inspect at reasonable times any facility, equipment, or process subject to the terms and conditions of this permit or the State Air Pollution Control Board Regulations; and
- d. To sample or test at reasonable times.

For purposes of this condition, the time for inspection shall be deemed reasonable during regular business hours or whenever the facility is in operation. Nothing contained herein shall make an inspection time unreasonable during an emergency.

(9 VAC 5-170-130 and 9 VAC 5-80-1180) [December 2, 2020]

23. Maintenance/Operating Procedures – At all times, including periods of start-up, shutdown, and malfunction, the permittee shall, to the extent practicable, maintain and operate the affected source, including associated air pollution control equipment, in a manner consistent with good air pollution control practices for minimizing emissions.

The permittee shall take the following measures in order to minimize the duration and frequency of excess emissions, with respect to air pollution control equipment and process equipment which affect such emissions:

- a. Develop a maintenance schedule and maintain records of all scheduled and non-scheduled maintenance.
- b. Maintain an inventory of spare parts.
- c. Have available written operating procedures for equipment. These procedures shall be based on the manufacturer's recommendations, at a minimum.
- d. Train operators in the proper operation of all such equipment and familiarize the operators with the written operating procedures, prior to their first operation of such equipment. The permittee shall maintain records of the training provided including the names of trainees, the Date of training and the nature of the training.

Records of maintenance and training shall be maintained on site for a period of five years and shall be made available to DEQ personnel upon request.

(9 VAC 5-50-20 E and 9 VAC 5-80-1180 D) [December 2, 2020]

24. Record of Malfunctions – The permittee shall maintain records of the occurrence and duration of any bypass, malfunction, shutdown or failure of the facility or its associated air pollution control equipment that results in excess emissions for more than one hour. Records shall include the Date, time, duration, description (emission unit, pollutant affected, cause), corrective action, preventive measures taken and name of person generating the record.
(9VAC 5-20-180 J and 9 VAC 5-80-1180 D) [December 2, 2020]
25. Notification for Facility or Control Equipment Malfunction - The permittee shall furnish notification to the Piedmont Regional Office of malfunctions of the affected facility or related air pollution control equipment that may cause excess emissions for more than one hour, by facsimile transmission, telephone or telegraph. Such notification shall be made as soon as practicable but no later than four daytime business hours after the malfunction is discovered. The permittee shall provide a written statement giving all pertinent facts, including the estimated duration of the breakdown, within 14 days of discovery of the malfunction. When the condition causing the failure or malfunction has been corrected and the equipment is again in operation, the permittee shall notify the Piedmont Regional Office.
(9 VAC 5-20-180 C and 9 VAC 5-80-1180) [December 2, 2020]
26. Violation of Ambient Air Quality Standard - The permittee shall, upon request of the DEQ, reduce the level of operation or shut down a facility, as necessary to avoid violating any

primary ambient air quality standard and shall not return to normal operation until such time as the ambient air quality standard will not be violated.

(9 VAC 5-20-180 I and 9 VAC 5-80-1180) [December 2, 2020]

27. Change of Ownership - In the case of a transfer of ownership of a stationary source, the new owner shall abide by any current permit issued to the previous owner. The new owner shall notify the Piedmont Regional Office of the change of ownership within 30 days of the transfer.

(9 VAC 5-80-1240) [December 2, 2020]

28. Permit Copy - The permittee shall keep a copy of this permit on the premises of the facility to which it applies.

(9 VAC 5-80-1180) [December 2, 2020]